

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

AKINWALE ORISAJINMI,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
SHAUN HEALY (TAX REG. #950577),
and JOHN DOES #1-3,

Defendants.

TO THE ABOVE-NAMED DEFENDANTS:

INDEX NO.

Plaintiff designates
Queens County
as the place of trial.The basis of venue
is situs of accident.**SUMMONS WITH
NOTICE**Plaintiff resides at:
15 Robert Avenue
Massapequa, NY 11758
County of Nassau

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
Aug. 7, 2020By: Steven Seener, Esq.
SEENER & SEENER, ESQS.
Attorneys for the Plaintiff
Akinwale Orisajinmi
48 Wall Street, 11th Floor
New York, New York 10005
(212) 766-2050

Defendants' addresses:

1. THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007.
2. NEW YORK CITY POLICE DEPT., c/o Corp. Counsel, 100 Church Street, New York, NY 10007.
3. POLICE OFFICER SHAUN HEALY, (TAX REG. #950577), c/o Corp. Counsel, 100 Church Street, New York, NY 10007 and 101st Precinct, 1612 Mott Ave., Far Rockaway, Queens, NY 11691.

Notice: The nature of this action is VIOLATION OF CIVIL RIGHTS; 42 USC 1983 ACTION; FALSE ARREST; UNJUST AND FALSE IMPRISONMENT; HUMILIATION.

The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default for an amount to be determined by a jury or trier of fact at the time of trial and in an amount which exceeds the jurisdictional limitations of all the lower courts which would otherwise have jurisdiction, together with interest from 8/29/19, and the costs of this action.

INDEX NUMBER PURCHASED AND SUMMONS AND COMPLAINT FILED:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

=====X
AKINWALE ORISAJINMI,

INDEX #

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
SHAUN HEALY (TAX REG. #950577) ,
and JOHN DOES #1-3,

Defendants.
=====X

Plaintiff, AKINWALE ORISAJINMI, by his attorneys, SEENER & SEENER,
ESQS., complaining of the defendants, respectfully alleges, upon information and belief,
the following:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, the plaintiff was a resident of the County of Nassau and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly formed and existing by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is department of the defendant, THE CITY OF NEW YORK, and was duly formed and is existing by virtue of the laws of the State of New York.
4. That the plaintiff has complied with all of the conditions precedent to the

bringing of this action and more particularly, that a Notice of Claim was served on the defendant, THE CITY OF NEW YORK, within 90 days of plaintiff's arrest of August 29, 2019; that a statutory hearing pursuant to Section 50-H of the Municipal Law was held; and that more than 30 days have elapsed to date from the service of the Notice of Claim and the plaintiff's claims remain unresolved.

5. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York and the New York State Constitution.

6. The arrest, detention, and stop of the plaintiff was unlawful, and unjust; and the arrest, search, detainment, and/or prosecution of the plaintiff constituted a deprivation of the plaintiff's constitutional rights; the initial occurrence took place on August 29, 2019 at approximately 8:00 p.m. at Queens-Nassau Rehabilitation Center, 520 Beach 19th Street, Far Rockaway, New York, then the 101st Precinct, Far Rockaway, Queens, New York, and further the plaintiff appeared in Criminal Court, Queens County on multiple occasions; the defendants, City of New York, New York City Police Department, Police Officer Shaun Healy, and other New York City police officers (John Does #1-3) arrested the plaintiff without probable cause and unlawfully detained, imprisoned, and handcuffed him; the plaintiff's rights were violated, in violation of the First, Fourth, and Fourteenth Amendments to the United States Constitution and his civil rights guaranteed by the New York State Constitution and laws; plaintiff was deprived of his constitutional and common law rights and rights under the United States Constitution

and New York State Constitution when the individual defendants unlawfully arrested, stopped, searched, confined plaintiff, caused the unjustifiable arrest and search and detainment and/or imprisonment of the plaintiff; and detention of the plaintiff without justification.

7. The occurrence and events involving the plaintiff herein took place initially on August 29, 2019 at approximately 8:00 p.m. commencing at Queens-Nassau Rehabilitation Center, Far Rockaway, New York, and continuing into a police car, the 101st Police Precinct, Central Booking, and Criminal Court, Queens County, all in the County of Queens, City and State of New York.

8. At that time and place plaintiff, AKINWALE ORISAJINMI, was falsely arrested, unjustly and falsely imprisoned, had his civil rights violated by the defendants, City of New York, New York City Police Dept., Police Officer Shaun Healy, and other officers, police officers, agents, servants, and/or employees of the defendants (other police officers, John Does # 1-3, being unknown at this time).

9. Plaintiff was falsely arrested and/or arrested without probable cause, without reasonable cause, without legal process and without legal justification; the plaintiff, AKINWALE ORISAJINMI, was thereafter taken into custody and kept and detained in custody of the Police Dept. and City of New York against his will; he was held by officers of the New York City Police Dept. and of the 101st Precinct; plaintiff was held illegally at Central Booking, in court detention and other places where he was held by the City of New York and/or NYC Police Dept.

10. That plaintiff, AKINWALE ORISAJINMI, was caused to suffer serious, severe emotional injuries and special damages, including disgrace and humiliation and

loss of income.

11. That plaintiff, AKINWALE ORISAJINMI, was handcuffed and held against his will and for no legal reason, plaintiff was searched and finger printed; plaintiff, AKINWALE ORISAJINMI, was arrested and charged falsely with crimes; he was in police custody for approximately 24 hours before he was released.

12. Moreover, the officers were verbally abusive to the plaintiff and he was subjected to a full search.

13. Plaintiff, AKINWALE ORISAJINMI, was detained; Plaintiff, AKINWALE ORISAJINMI, was arrested, held, and searched without a warrant or probable cause; the plaintiff, AKINWALE ORISAJINMI, was held illegally, falsely accused of committing a crime, handcuffed, and injured in his mind; the plaintiff, AKINWALE ORISAJINMI, was unlawfully stopped, interrogated and accosted without a warrant or probable cause.

14. The plaintiff, AKINWALE ORISAJINMI, was stopped, interrogated, and arrested without cause or justification or legal basis in violation of his rights under the New York State and U.S. Constitutions. Plaintiff, AKINWALE ORISAJINMI, was subjected false arrest, unlawful and improper imprisonment, illegal detainment, and unnecessary force; further the defendants acted under color of law specifically Police Officer Shaun Healy and other police officer defendants, John Does #1-3.

15. The detainment of the plaintiff, AKINWALE ORISAJINMI, was baseless and illegal.

16. Defendant, Police Officer Shaun Healy (TAX REG. #950577) , was and still is at all times relevant herein an officer, employee, and/or agent of the New York

City Police Department and/or the City of New York and a resident of the State of New York.

17. On the date of incident, August 29, 2019, defendant, Police Officer Shaun Healy, and police officers John Does #1-3 were employees of the defendants, New York City Police Department and/or City of New York.

18. New York City Police Officers John Does #1-3 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties; they were acting for and on behalf of the defendants, New York City Police Department and/or City of New York, at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department and/or City of New York.

20. Defendant, City of New York, is a municipal entity created and authorized under the laws of the State of New York; it is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible; the defendant, City of New York, assumed the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police

Department.

21. That on the above stated date and time Police Officer Shaun Healy and/or other NYC Police Officers accosted, stopped, and interrogated plaintiff without probable cause.

22. The defendant police officers then arrested and detained the plaintiff and handcuffed him without probable cause or legal justification.

23. Police Officer Shaun Healy and/or other police officers observed the other officers or defendants violate plaintiff's rights under the Constitution of the United States and did nothing to prevent the violation of their Constitutional Rights.

24. Failure to intervene by the individually named defendant police officers caused plaintiff to sustain psychological and emotional trauma.

SECOND CAUSE OF ACTION

Violation of Plaintiffs' Fourth Amendment and

Fourteenth Amendment Rights

25. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs designated 1-24 with the same force and effect as if more fully set forth at length herein.

26. Defendant Police Officer Shaun Healy and Defendant Police Officers John Does #1-3, who were acting in concert and within the scope of their authority, arrested and caused plaintiff to be imprisoned and violated plaintiff's right to be free of an unreasonable search and seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

27. Plaintiff suffered emotional injuries as a result of his incarceration and prosecution and loss of income, humiliation, and quality of life.

28. As a result of plaintiff's unlawful arrest, search, and seizure, amounting to a violation of his civil rights, plaintiff suffered degradation, humiliation, loss of reputation, disgrace, loss of esteem, and various other emotional injuries, as well as economic harm.

THIRD CAUSE OF ACTION

29. Plaintiff reiterates and realleges the facts stated in paragraphs 1-28 as if stated fully herein.

30. As a result of their actions, Defendants, acting under "Color of law," deprived Plaintiff of his rights to freedom from deprivation of liberty without due process of law in violation of the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983.

31. Defendants subjected Plaintiff to these deprivations of his rights either maliciously or by acting with a reckless disregard for whatever Plaintiff's rights would be violated by their actions.

32. As a direct and proximate result of the acts of Defendants, plaintiff suffered psychological, psychic, emotional, and economic injuries, endured great pain and mental suffering, and was deprived of his physical liberty.

FOURTH CAUSE OF ACTION

33. Plaintiff reiterates and realleges the facts stated in paragraphs 1-32 as if stated fully herein.

34. As a result of their actions, Defendants, acting under "Color of law,"

deprived Plaintiff of his right to freedom from excessive force without due process of law in violation of the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983.

35. Defendants subjected Plaintiff to these deprivations of his rights either maliciously or by acting with a reckless disregard for whatever Plaintiff's rights would be violated by their actions.

36. These Defendants officers either actively participated in the excessive force and false arrest or were present and improperly failed to intervene to prevent other officers from using excessive force although they were in a position to do so.

37. As a result of the aforesaid occurrence, Plaintiff suffered the damages and injuries aforesaid. All Defendants are liable for said damages and injuries.

FIFTH CAUSE OF ACTION

For Violation of Civil Rights

38. Plaintiff reiterates and realleges the facts stated in paragraphs 1-37 as if stated fully herein.

39. Defendant, City of New York and Defendant New York City Police Department, through its police Commissioner, as a municipal policymaker, in the hiring, training and supervision of the Defendants, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain, and Plaintiff, violating Plaintiff's rights to freedom from the use of excessive and unreasonable force and freedom from deprivation of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983 and 42 U.S.C. 1985.

40. As a direct and proximate result of the aforementioned policy and custom of deliberate indifference of Defendants New York City and New York City Police Department, Defendants, P.O. Shaun Healey, and John Does #1 -3 committed the unlawful acts referred to above and thus, Defendants New York City and New York City Police Department are liable for the Plaintiff's injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

41. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs designated 1-40 with the same force and effect as if more fully set forth at length herein.

42. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in the presence of other officers.

43. Defendants failed to intervene to prevent the unlawful conduct described herein.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

44. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs designated 1-43 with the same force and effect as if more fully set forth at length herein.

45. The defendant, City of New York and defendant New York City Police Department and their employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants Police Officer Shaun Healy and Police Officers John Does #1-3, individuals who were unfit for the

performance of police duties on August 29, 2019, at the aforementioned location.

46. That this action falls into one more of the exceptions set forth in CPLR Section 1602.

WHEREFORE, plaintiff demands judgment against the defendants on each cause of action in a substantial sum of money which exceeds the jurisdictional limits of all the lower courts that would otherwise have jurisdiction, and which amount will be determined by the jury or trier of fact against the defendants at the time of trial; together with the interest, costs, and disbursements herein;

a. Further, that the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

b. That the plaintiff has such other and further relief as the Court shall deem just and proper.

Dated: New York, New York
Aug. 7, 2020

By: 

STEVEN SEENER, ESQ.
SEENER & SEENER, ESQS.
Attorneys for Plaintiff
Akinwale Orisajinmi
48 Wall Street, 11th Floor
New York, New York 10005
Telephone No. 212-766-2050

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the courts of the State of New York, shows that affirmant is a partner in the firm of SEENER & SEENER, ESQS., attorneys of record for the Plaintiff(s) in the within action, that affirmant has read the foregoing Complaint and knows the contents thereof; that the same is true to the affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes it to be true.

Affirmant further says that the reason this verification is made by affirmant and not by said Plaintiff(s) is that Plaintiff(s) are not residents of the County in which affirmant maintains his office.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are as follows: Document's in affirmant's file.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
Aug. 7, 2020


STEVEN SEENER, ESQ.

